

25TRCV03911 25TRCV03911

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 25TRCV03911 Hearing Date: July 16, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ARDALAN OOSHANI

;

Plaintiff,

vs.

AMIN SHAD

;

Defendant.

Case

No.:

25TRCV03911

Hearing

Date:

July
16, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

ardalan ooshani's motion TO COMPEL PROVISION OF SCHEDULE K-1 AND COMPANY TAX
INFORMATION PURSUANT TO CALIFORNIA CORPORATIONS CODE § 17704.10

(2)

PLAINTIFF

ardalan ooshani's REQUEST TO RESERVE THE RIGHT TO RECOVER REASONABLE EXPENSES

MOVING PARTY: Plaintiff, Ardalan Ooshani

RESPONDING

PARTY: Defendant, Amin Shad

(1)

Plaintiff

Ardalan Ooshani's Motion to Compel Provision of Schedule K-1 and Company Tax
Information Pursuant to California Corporations Code § 17704.10 is DENIED
pursuant to Code of Civil Procedure sections 580 and 1085.

(2)

Plaintiff

Ardalan Ooshani's Request to Reserve the Right to Recover Reasonable Expenses is
DENIED pursuant to Code of Civil Procedure sections 580 and 1085.

The Court considers the moving
papers filed on June 16, 2026, the opposition brief filed on June 30, 2026, and
the reply brief filed on July 9, 2026.

BACKGROUND

Factual Background

On November 18, 2025, plaintiff Ardalan Ooshani filed the Verified Complaint ("Complaint") against defendants Amin Shad and DOES 1 through 5.

The Complaint includes the following causes of action: (1) Declaratory Relief; (2) Temporary Restraining Order (Ex Parte) and Preliminary Injunction Relief; (3) Breach of Fiduciary Relief; (4) Civil Damages; (5) Conversion and Unauthorized Control; (6) Accounting (Equitable); (7) Constructive Trust; and (8) Unjust Enrichment.

On December 29, 2025, Shad filed a Cross-Complaint against Ooshani. The Cross-Complaint includes the following causes of action: (1) Breach of Fiduciary Duty; (2) Breach of Contract (Operating Agreement and Related Obligations); (3) Conversion; (4) Violation of Penal Code § 502 (Computer Data Access and Fraud Act); (5) Intentional Interference with Prospective Economic Advantage; (6) Unfair Competition (Bus. & Prof. Code § 17200 et seq.); (7) Declaratory Relief; (8) Injunctive Relief; and (9) Financial Obligations and Damages.

LEGAL STANDARD

"Upon the request of a member or transferee, for purposes reasonably related to the interest of that person as a member or a transferee, a manager or, if the limited liability company is member-managed, a member in possession of the requested information, shall promptly deliver, in writing, to the member or transferee, at the expense of the limited liability company, a copy of the information required to be maintained by paragraphs (1), (2), and (4) of subdivision (d) of Section 17701.13, and any written operating agreement of the limited liability company." (Corp. Code, § 17704.10, subd. (a).)

"Each member, manager, and transferee has the right, upon reasonable request, for purposes reasonably related to the interest of that person as a member, manager, or transferee, to each of the following: ¶ (1) To inspect and copy during normal business hours any of the records required to be maintained pursuant to Section 17701.13. ¶ (2) To obtain in writing from

the limited liability company, promptly after becoming available, a copy of the limited liability company's federal, state, and local income tax returns for each year." (Corp. Code, § 17704.10, subd. (b).)

"The limited liability company shall send or cause information to be sent in writing to each member or holder of a transferable interest within 90 days after the end of each taxable year the information necessary to complete federal and state income tax or information returns and, in the case of a limited liability company with 35 or fewer members, a copy of the limited liability company's federal, state, and local income tax or information returns for the year." (Corp. Code, § 17704.10, subd. (e).)

"In addition to the remedies provided in Sections 17713.06 and 17713.07 and any other remedies, a court of competent jurisdiction may enforce the duty of making and mailing or delivering the information and financial statements required by this section and, for good cause shown, extend the time therefor." (Corp. Code, § 17704.10, subd. (f).)

"In any action under this section or under Section 17713.07, if the court finds the failure of the limited liability company to comply with the requirements of this section is without justification, the court may award an amount sufficient to reimburse the person bringing the action for the reasonable expenses incurred by that person, including attorney's fees, in connection with the action or proceeding."
(Corp. Code, § 17704.10, subd. (g).)

DISCUSSION

Ooshani seeks the following court orders: "(1) compelling Defendant Amin Shad, as the member and person in control of the Company's records and tax information, to deliver to [Ooshani], within fifteen (15) days of the Court's order, the Company's Schedule K-1 and all information and tax returns necessary for [Ooshani] to complete his 2025 federal and state income tax returns, including any filed extension of time to file and identification of the Company's tax preparer, as required by Corporations Code section 17704.10; (2) finding, pursuant to section 17704.10, subdivision (g), that [Shad's] failure to comply is without justification, with [Ooshani] reserving the right to seek any

recoverable expenses by separate application; and (3) granting such other and further relief as the Court deems just and proper.” (Motion, pp. 10:23-11:3.)

“[T]he court may grant the plaintiff any relief consistent with the case made by the complaint and embraced within the issue.” (Code Civil Proc., § 580, subd. (a).) A motion to enforce compliance with a statutory duty is not exempt from these pleading-related limitations. Because motions serve as procedural avenues for obtaining relief within the ongoing action, they must be consistent with the issues asserted in the complaint.

If a motion to enforce compliance requests relief that is irrelevant to the case or to the causes of action actually asserted, such as compelling performance of an obligation nowhere pled or litigated, the Court lacks the authority to grant that relief in accordance with Code of Civil Procedure section 580. Granting such a motion would effectively permit parties to broaden the scope of litigation through motion practice, circumventing the pleading requirements that delineate the actual issues at stake in the case.

Here, Ooshani's requests are unrelated to his Complaint, which does not address Shad's duty to provide “the Company's Schedule K-1 and all information and tax returns necessary for Ooshani to complete his 2025 federal and state income tax returns, including any filed extension of time to file and identification of the Company's tax preparer.”

Consequently, the Court will not mandate the production of such information when it is not pertinent to the case. Thus, Ooshani's motion and request to reserve the right to recover reasonable expenses are DENIED.

ORDERS

1) Plaintiff

Ardalan Ooshani's Motion to Compel Provision of Schedule K-1 and Company Tax Information Pursuant to California Corporations Code § 17704.10 is DENIED.

2) Plaintiff

Ardalan Ooshani's Request to Reserve the Right to Recover Reasonable Expenses is DENIED.

3) Plaintiff

is ordered to give notice of this Court's ruling.

IT
IS SO ORDERED.

DATED: July 16, 2026

Tamara
Hall

Judge
of the Superior Court